

The following letter disputing fees for records provided in response to an Inquiry Judge Subpoena is a modified version of a letter prepared by Robert Morgester, Deputy Attorney General, State of California. King County (Washington) Senior Deputy Prosecuting Attorney Ivan Orton prepared the modification. Reach Mr. Orton at ivan.orton@metrokc.gov or (206) 296-9082.

January 5, 2004

Jane Doe, Compliance Paralegal
YAHOO!
701 First Avenue
Sunnyvale, CA 94089

RE: Request for subscriber information: roe1234@yahoo.com
Internal Reference Number: 1234

Dear Ms. Doe:

I have been forwarded a copy of a Yahoo! invoice for payment for the production of records under the Electronic Communications Privacy Act (ECPA). Unfortunately, we are not authorized to make payments for materials obtained under a Special Inquiry Judge subpoena.

We recognize that under 18 U.S.C., section 2706, that the ECPA requires the governmental entity obtaining the contents of communications, records, or other information to pay the person or entity assembling or providing such information a fee for reimbursement for such costs as are reasonably necessary and which were directly incurred in searching for, assembling, reproducing or otherwise providing such information. The statute specifies that the amount of the fee is to be mutually agreed upon, and if no agreement is reached, it is to be determined by the court that issued the order for production or the court where the criminal prosecution would be brought.

The Washington law authorizing the use of Special Inquiry Judge subpoenas, RCW 10.27.140, does not authorize the payment of fees or expenses except as stated in subparagraph (4) of that statute. Subparagraph (4) provides that those subject to Special Inquiry Judge Subpoenas "shall receive only those fees paid witnesses in Superior Court criminal trials." That fee is currently \$10 a day for a person actually attending a trial or Inquiry Judge proceeding. Thus it is my understanding that we cannot pay you.

For NORM MALENG, King County Prosecuting Attorney

IVAN ORTON

Prosecuting Attorney
King County

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Senior Deputy Prosecuting Attorney
Fraud Division